

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, SERGEANT JOAN
FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT,
P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE
34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD
NO: 107 OF THE 34TH PRECINCT,Defendant(s).
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates New York
County as the place of trial.The basis of venue is:
Place of OccurrencePlaintiff resides at:
170 Vermilyea Avenue, Apt#
1D NY, NY 10034
County of New York**To the above named Defendant:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
September 12, 2019
MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
CHRISTOPHER PADILLA
a.k.a. CHRIS PADILLA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9242

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

SERGEANT JOAN FERREIRA, SHIELD
NO: 0469 OF THE 34TH PRECINCT
4295 Broadway
New York, NY 10033

P.O. JOHN BONHOMME, SHIELD NO: 0633
OF THE 34TH PRECINCT
4295 Broadway
New York, NY 10033

P.O. PAUL ACOSTA, SHIELD NO: 107
OF THE 34TH PRECINCT
4295 Broadway
New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA,

Plaintiff(s),

Index No.:

Date Purchased:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK , NEW YORK CITY
POLICE DEPARTMENT, SERGEANT JOAN
FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT,
P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE
34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD
NO: 107 OF THE 34TH PRECINCT,

Defendant(s).

-----X

Plaintiff, by her attorneys GETZ & BRAVERMAN, P.C., complaining of the
Defendant respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA**, resides in the County of New York, City and State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, **THE CITY OF NEW YORK**, (hereinafter referred to as "CITY", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant, **CITY**, its agents, servants, employees and/or licensees operated, maintained and controlled **NEW YORK CITY POLICE DEPARTMENT**,

including all the police officers thereof.

4. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY POLICE DEPARTMENT**, its agents, servants and employees supervised, maintained and controlled its personnel.

5. Upon information and belief, at all times mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

6. That an Order to Show Cause to file a late Notice of Claim *nun pro tunc* was filed on January 22, 2019 and a decision still has not been rendered.

7. That a 50h hearing has not been conducted.

8. That this action is commenced within one year and 90 days after the cause of Action arose.

AS AND FOR THE FIRST CAUSE OF ACTION

9. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "8" with the same force and effect as if more fully set forth herein.

10. That on or about June 21, 2018, Plaintiff, **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA** was wrongfully and falsely detained and imprisoned, without any right

or grounds therefore.

11. That on or about June 21, 2018, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiff, **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA**, of criminal possession of marijuana in the Second and Fourth Degree.

12. Upon information and belief, on or about June 21, 2018 and from that time until his release on or about June 23, 2018, Defendants **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, deliberately and maliciously detained Plaintiff **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA**, an innocent male without any probable cause whatsoever.

13. That the imprisonment of plaintiff, **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA** was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA**, was in fact guilty of such crimes.

14. That the said detainment of the plaintiff herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.

15. That the defendant, their agents, servants and/or employees falsely detained the plaintiff, compelled him to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff at other diverse places and times, including, but not limited to, precinct in the station-house in the County of New York, City and State of New York and Central Booking located in the Borough of Manhattan, City and State of New York.

16. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiff herein to be detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched, detained and placed in confinement at said locations.

17. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiff **CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA** was falsely, publicly, wickedly and maliciously accused.

18. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiff herein; plaintiff was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.

19. That the aforesaid occurrence, false imprisonment of the plaintiff, was caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiff herein.

20. That by reason of the aforesaid, the plaintiff was subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from preforming and transacting his necessary affairs and business; and was incapacitated from his usual occupation.

21. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "21", with the same force and effect as if more fully and at length set forth herein.

23. That on or about the June 21, 2018, and prior and subsequent thereto, in the County of New York, City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.

24. That the plaintiff was wholly innocent, and was forced by the defendants, to be falsely detained.

25. That the aforesaid occurrence, false arrest, imprisonment of the plaintiff and

malicious prosecution, was caused solely and wholly by reason of the negligence of the defendant's, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

26. That by reason of the aforesaid, the plaintiff still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to his credit and circumstances; was prevented from performing and transacting her necessary affairs and business; and was incapacitated from his usual occupations.

27. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "27" , with the same force and effect as if more fully set forth herein.

29. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, violation of his civil rights; in that they used the threat of

imprisonment, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

30. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, violation of his civil rights; in that they sued the threat of imprisonment, in that the defendants, their agents, servants and/or employees failed to recognize that plaintiff's right had been unjustly violated, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

31. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

32. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting her necessary affairs and business. Upon information and belief plaintiff has expended diverse sums of monies and incurred debt, in an effort to extricate herself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees

and disbursements.

AND AS FOR A FOURTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" inclusive with the same force and effect as if more fully and at length set forth herein.

34. That on or about June 21, 2018, in the County of New York, City and State of New York, at which time and place defendants **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.

35. As plaintiff was lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, who having the real and apparent ability to cause imminent harmful apprehension, detainment and the power and authority to warrant for the arrest, detention,

and imprisonment of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be detained, and imprisoned, stripped and searched and in violation of plaintiff's civil rights; in failing to recognize, detect and investigate same; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiff.

36. That defendants **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, failed to properly and adequately ascertain that plaintiff was not in violation of the law and that plaintiff was detained, and imprisoned for an extended period of time, depriving him of his rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed him and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiff without any conduct on the part of the plaintiff to so warrant, to wit: in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and mental injury to the plaintiff, arrested, detained, prosecuted and imprisoned the plaintiff without his consent; plaintiff was at all times conscious of her arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment;

and the arrest, detainment, prosecution and imprisonment was not otherwise privileged;

- b) the arrest, detention, and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of New York, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.
- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful detention and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,
- d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police

- officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws of the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,
- e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,
- f) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of

same presents a clear and present danger to the citizen of the United States of America and the City and State of New York; and,

- g) That the said arrest and detention were instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,
- h) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the Authority of their office as police officers for said State, City and County.

37. Defendants, **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, did not have probable cause to arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

38. Defendants, **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, did not have probable cause to arrest, detain, and imprison plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

39. As a direct result of the aforesaid actions and conduct of the part of the said defendants, , **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH**

PRECINCT, caused plaintiff to be falsely arrested, detained, and imprisoned.

40. That at all times hereinafter mentioned, the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.

41. That at all times hereinafter mentioned, defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, and acting within the scope and authority of his/their employment and office.

42. That at all times hereinafter mentioned, defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL**

ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT, within the scope and authority of their employment and office.

43. That during all times hereinafter mentioned, the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiff and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.

44. The defendants, **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME, SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107 OF THE 34TH PRECINCT**, were employed by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, and imprisonment and that said defendants, **THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOAN FERREIRA,**

SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME,
SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA,
SHIELD NO: 107 OF THE 34TH PRECINCT, did not confer due process upon the plaintiff herein, and in denied the rights, privileges and immunities guaranteed plaintiff and other citizens of the United States of America by the Constitution of the United States of America.

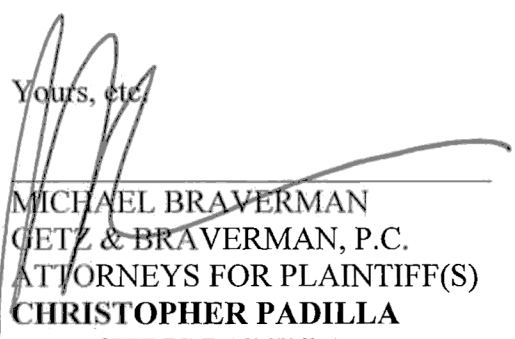
45. That by reason of the aforesaid, the plaintiff requests the following relief:

- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
- b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiff(s) demand(s) judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
September 23, 2019

Yours, etc.


MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
ATTORNEYS FOR PLAINTIFF(S)
CHRISTOPHER PADILLA
a.k.a. CHRIS PADILLA
172 EAST 161ST STREET
BRONX, NEW YORK 10451
(718) 993-3000
OUR FILE NO. 9242

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF BRONX

Christopher Padilla a.k.a. Chris Padilla being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed Summons & Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Bronx, New York
September 12, 2019

[Signature]

Sworn to before me this

12th day of September, 2019

Notary Public

[Signature]

Arianna L. Walvin
Commissioner of Deeds
City of New York No. 3-7477
Certificate Filed in
Bronx County
Commission Expires 10-1-2019

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT, SERGEANT
JOAN FERREIRA, SHIELD NO: 0469 OF THE 34TH PRECINCT, P.O. JOHN BONHOMME,
SHIELD NO: 0633 OF THE 34TH PRECINCT AND P.O. PAUL ACOSTA, SHIELD NO: 107
OF THE 34TH PRECINCT,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.

Attorney for Plaintiff

CHRISTOPHER PADILLA a.k.a. CHRIS PADILLA

172 East 161st Street

Bronx, NY 10451

(718) 993-3000

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. JOHN BONHOMME, SHIELD NO: 0633
OF THE 34TH PRECINCT
4295 Broadway
New York, NY 10033

NEW YORK CITY POLICE DEPARTMENT
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P.O. PAUL ACOSTA, SHIELD NO: 107
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4295 Broadway
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SERGEANT JOAN FERREIRA, SHIELD
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